

Sachiv Sharma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 July 2022 · WRIT - C No. - 19898 of 2022 · **Writ disposed; Para 6.8 objection; coercive recovery stayed eight weeks.**

HEADNOTE

Without examining merits, the High Court disposed of a writ against a recovery citation of Rs. 2,33,071 by granting liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks. If filed, the distribution licensee was to decide it in accordance with law within the next four weeks after hearing. Coercive action on the demand was stayed for eight weeks or until disposal of the objection, whichever earlier.

FACTUAL SUMMARY

The petitioner, Sachiv Sharma, filed a writ petition in the Allahabad High Court seeking certiorari to quash a recovery citation dated 17 June 2021 for Rs. 2,33,071 issued by the Power Distribution Corporation (respondent no. 4) and addressed to respondent no. 2, together with mandamus restraining coercive recovery. Counsel for the Corporation stated on instructions that the petitioner could file an objection against the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to recovery citation as alternate remedy

HOLDING

A writ seeking to quash a recovery citation and restrain coercive recovery was disposed of without opinion on merits, with liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if so submitted, the distribution licensee was to decide it in accordance with law within the next four weeks after affording a reasonable opportunity of hearing, and no coercive action on the demand was to be taken for eight weeks or till disposal of the objection, whichever earlier. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy Writ against the recovery citation was disposed without a merits determination, relegating the consumer to an objection under Para 6.8. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay If the Para 6.8 objection is filed within four weeks, it is to be decided within the next four weeks after hearing; coercive recovery is stayed for eight weeks or till disposal, whichever earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 17-06-2021 FOR RS. 2,33,071

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1